



FundiPlug Terms of Use

Effective Date: 20 May 2026 · Operator: Digimatt Solutions Ltd (Kenya)

These Terms of Use (the "Terms") form a legally binding agreement between you ("User", "you") and Digimatt Solutions Limited, a company duly incorporated under the laws of the Republic of Kenya ("Digimatt Solutions", "Company", "we", "us", "our"), the owner and operator of the FundiPlug platform (the "Platform"). By creating an account, accessing or using the Platform in any manner, you confirm that you have read, understood and irrevocably accept these Terms, our Privacy Policy and all incorporated policies. If you do not agree, you must not use the Platform.

1. Definitions

- Client** means a User who requests, books or pays for services through the Platform.
- Fundi** / **Service Provider** means an independent contractor offering services to Clients via the Platform.
- Supplier** means a User offering goods, materials or supplies through the Platform.
- Content** means any text, images, reviews, ratings, profiles or other material posted on the Platform.

2. Nature of the Platform & No Agency

- FundiPlug is a neutral digital marketplace that merely facilitates connections between independent Clients, Fundis and Suppliers.
- We are **not** a party to any agreement formed between Users. We do **not** employ Fundis or Suppliers, do not supervise the work performed, and do not provide any services ourselves.
- No partnership, joint venture, agency, employment or fiduciary relationship is created between Digimatt Solutions and any User.

3. Eligibility & Accounts

- You must be at least 18 years of age and legally capable of entering into binding contracts under Kenyan law.
- You agree to provide accurate, current and complete information and to keep it updated.
- You are solely responsible for safeguarding your credentials and for all activity under your account.
- We may, at our sole discretion, refuse, suspend or terminate any account without notice or liability.

4. Fundi Verification - No Warranty

- Verification (where conducted) is a basic administrative check and is **not** an endorsement, guarantee or warranty of skill, character, honesty, safety or fitness.

- Clients remain solely responsible for due diligence before engaging any Fundi or Supplier.

5. Payments, Fees & Taxes

- Payments may be processed by third-party providers (e.g., M-Pesa, card processors). Their terms govern those transactions.

- We may charge service fees, commissions or platform fees, which may change at our discretion upon notice on the Platform.

- All applicable taxes, levies and duties are the sole responsibility of the User earning the income.

- Off-platform payments are strictly prohibited and made entirely at your own risk; the Company bears no liability whatsoever for such transactions.

6. User Conduct & Prohibited Activities

- Use the Platform for any unlawful, fraudulent, defamatory, harassing, discriminatory or harmful purpose.

- Misrepresent your identity, qualifications, licensing or affiliations.

- Circumvent platform fees, scrape data, reverse engineer, or interfere with the Platform.

- Upload viruses, malicious code, or content infringing third-party rights.

- Solicit, harass, threaten, stalk or endanger any person.

7. Disclaimer of Warranties

THE PLATFORM AND ALL CONTENT ARE PROVIDED ON AN "AS IS" AND "AS AVAILABLE" BASIS, WITHOUT WARRANTIES OF ANY KIND, WHETHER EXPRESS, IMPLIED, STATUTORY OR OTHERWISE, INCLUDING MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, NON-INFRINGEMENT, ACCURACY, RELIABILITY OR UNINTERRUPTED OPERATION. We make no warranty regarding the conduct, quality, safety, legality, qualifications or performance of any User or service rendered.

8. Limitation of Liability

- TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, DIGIMATT SOLUTIONS, ITS DIRECTORS, SHAREHOLDERS, OFFICERS, EMPLOYEES, AGENTS, AFFILIATES, LICENSORS AND PARTNERS SHALL NOT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, PUNITIVE OR EXEMPLARY DAMAGES, OR ANY LOSS OF PROFITS, REVENUE, DATA, GOODWILL, BUSINESS OPPORTUNITY OR REPUTATION, ARISING OUT OF OR IN CONNECTION WITH YOUR USE OF (OR INABILITY TO USE) THE PLATFORM, INTERACTIONS BETWEEN USERS, OR ANY SERVICES BOOKED THROUGH THE PLATFORM, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

bullet WITHOUT PREJUDICE TO THE FOREGOING, THE AGGREGATE LIABILITY OF DIGIMATT SOLUTIONS TO ANY USER FOR ALL CLAIMS ARISING FROM OR RELATING TO THE PLATFORM IS LIMITED TO THE LESSER OF (a) THE AMOUNT OF FEES ACTUALLY PAID BY THE USER TO DIGIMATT SOLUTIONS IN THE THREE (3) MONTHS PRECEDING THE EVENT GIVING RISE TO THE CLAIM, OR (b) KES 5,000.

9. Indemnity

bullet You agree to fully indemnify, defend and hold harmless Digimatt Solutions Limited, its directors, shareholders, officers, employees, agents, contractors, affiliates and successors (the "Indemnified Parties") from and against any and all claims, demands, actions, suits, proceedings, losses, liabilities, damages, fines, penalties, costs and expenses (including reasonable advocate-client fees and disbursements) arising out of or related to: (i) your access to or use of the Platform; (ii) any service, transaction or interaction with another User; (iii) your breach or alleged breach of these Terms or any law; (iv) your Content; (v) your violation of any third-party rights including intellectual property, privacy or publicity rights; or (vi) any negligent, wilful or fraudulent act or omission by you.

bullet This indemnity survives termination of your account or these Terms.

10. Release

You hereby irrevocably release and forever discharge the Indemnified Parties from any and all claims, disputes, demands and liabilities of every kind and nature arising out of or in any way connected with disputes between Users (Client-Fundi, Client-Supplier, Fundi-Supplier or otherwise), the performance or non-performance of services, personal injury, property damage, theft, loss or death occurring before, during or after a service engagement.

11. Intellectual Property

All trademarks, logos, software, designs and content on the Platform are owned by or licensed to Digimatt Solutions and are protected under Kenyan and international laws. No right or licence is granted to you except as expressly stated.

12. User Content Licence

By posting Content, you grant Digimatt Solutions a worldwide, perpetual, irrevocable, royalty-free, sublicensable licence to use, host, store, reproduce, modify, publish and display such Content in connection with operating and promoting the Platform.

13. Dispute Resolution & Governing Law

bullet These Terms are governed by and construed in accordance with the laws of the Republic of Kenya.

bullet Any dispute shall first be referred to good-faith negotiation; failing which, to mediation under the Nairobi Centre for International Arbitration rules; failing which, to final and binding arbitration in Nairobi by a sole arbitrator under the Arbitration Act, 1995.

bullet Notwithstanding the above, Digimatt Solutions may seek urgent injunctive or equitable relief in the Kenyan courts to protect its rights.

bullet You waive any right to participate in a class action, collective action or representative proceeding against the Company.

14. Suspension & Termination

bullet We may suspend, restrict or terminate your access at any time, with or without notice, for any reason including suspected breach, fraud, or to comply with law.

bullet Upon termination, Sections 7-13, 15 and 16 continue to apply.

15. Force Majeure

We are not liable for any failure or delay caused by events beyond our reasonable control, including acts of God, natural disasters, pandemics, war, terrorism, civil unrest, government action, network or power failures.

16. Changes to Terms

We may amend these Terms at any time by posting the updated version on the Platform. Continued use after such posting constitutes acceptance.

17. Severability & Entire Agreement

If any provision is held invalid or unenforceable, the remaining provisions shall continue in full force. These Terms, together with the Privacy Policy, constitute the entire agreement between you and Digimatt Solutions and supersede all prior agreements.

18. Contact

Digimatt Solutions Limited · Nairobi, Kenya · Email: support@fundiplug.ke · Web: www.fundiplug.ke

By clicking "I agree" during sign-up or by using the Platform, you acknowledge that you have read, understood and accept these Terms in full and agree to be legally bound by them.